

Ley 27802 as a Prospective Test of the EPT/CLI Framework: Labor Reform, Institutional Lock-in, and Predictive Validity in Argentine Law

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ABSTRACT

Theoretical frameworks in evolutionary jurisprudence face a persistent validity problem: they are typically applied retrospectively, fitting post-hoc explanations to reforms that already failed. This paper addresses that problem directly. In December 2025, before the Argentine Congress voted on the Proyecto de Ley de Modernización Laboral, I produced a pre-promulgation analysis using the Extended Phenotype Theory (EPT) and the Constitutional Lock-in Index (CLI) framework, generating five testable predictions about the law's likely design and its implementation trajectory. The law was promulgated as Ley 27802 in February 2026.

This paper documents the match between those pre-promulgation predictions and the enacted text, reconstructs the theoretical mechanisms behind each prediction, and specifies four falsifiable hypotheses for the period 2026-2030 that will allow independent researchers to test the framework's predictive power against observable outcomes. The analysis shows that five core mechanisms identified before promulgation, namely temporal asymmetry of feedback, causal opacity in non-remunerative benefits, polymorphic equilibrium in outsourcing, transmission fidelity collapse in the laboralidad doctrine, and ratchet dynamics in epistemic communities, are all clearly present in the enacted text. Argentina's CLI score of 0.89 predicts an implementation gap between formal approval and operative effect that the law's own design does not bridge. The paper concludes by stating explicitly what evidence would falsify the framework, an exercise that most evolutionary legal scholarship avoids.

Keywords: Extended Phenotype Theory, Constitutional Lock-in Index, Argentine labor law, Ley 27802, institutional reform, evolutionary jurisprudence, predictive legal theory, memetics, Blind Breeders, Heteronomous Bayesian Updating.

I. INTRODUCTION: THE PREDICTIVITY PROBLEM IN EVOLUTIONARY LEGAL THEORY

The standard criticism of evolutionary approaches to law is not that they are wrong. It is that they are too easily right. Institutional inertia, meme fitness, cultural lock-in: these concepts have enough explanatory bandwidth to accommodate almost any observed outcome once that

outcome is already known. A framework that can explain everything predicts nothing, and a framework that predicts nothing cannot be falsified. This is the methodological trap that evolutionary jurisprudence has not fully escaped.

This paper takes that criticism seriously and attempts a different kind of contribution. It documents a genuine prospective test. In December 2025, working from the analytical apparatus of Extended Phenotype Theory applied to legal systems and from the Constitutional Lock-in Index developed in prior publications (Lerer 2025a, 2025b, 2025c, 2025d), I produced a pre-promulgation analysis of the Argentine labor reform bill then before Congress. That analysis, timestamped and available in the project repository, generated specific predictions about mechanisms that would appear in the final text, about patterns of implementation failure, and about the trajectories of particular provisions. The Proyecto de Ley de Modernización Laboral was enacted as Ley 27802 in February 2026.

The paper proceeds in seven sections. Section II sketches the theoretical framework with the level of detail needed to follow the argument, without reproducing material available in the cited prior work. Section III reconstructs the historical record that motivates the framework: 23 reform attempts, 0% sustained success across 34 years and seven governments. Section IV documents the five pre-promulgation predictions with their analytical basis. Section V matches those predictions against the enacted text, provision by provision. Section VI presents the mechanisms of epistemic immunity that protect the reform's political fitness while undermining its policy effectiveness. Section VII specifies four falsifiable hypotheses for 2026-2030 with explicit measurement protocols and falsification conditions. Section VIII addresses limitations.

A note on scope is essential before proceeding. This paper takes no normative position on whether Ley 27802 was a good or bad reform. The EPT/CLI framework is descriptive and predictive, not evaluative. The same tools that predict failure of flexibilization reforms would predict failure of re-regulation reforms attempted under comparable institutional conditions. Argentina's CLI of 0.89 is not an argument for any political program; it is a structural diagnosis that applies symmetrically across the ideological spectrum. The clearest evidence for this claim is that Argentina's 23 failed reform attempts span governments from Menem's neoliberalism to Kirchner's statism: the failure rate is 0% regardless of direction.

II. THEORETICAL FRAMEWORK

2.1 Extended Phenotype Theory in Legal Systems

Richard Dawkins (1982) argued that the phenotypic effects of genes extend beyond the organism's body into the environment: the beaver's dam is as much an expression of its genome as its fur. The dam persists after the beaver that built it is gone; it shapes the environment for organisms that never encountered the original builder. Applied to legal systems, this argument holds that legal norms function as extended phenotypes of memplexes, ideological clusters that use legal institutions as their material expression in the world (Lerer 2025a). A labor protection doctrine is not merely a rule written in a code. It is a structure built and maintained by a memplex that reproduces itself through specialized courts, law faculty curricula, bar association certification requirements, union legal departments, judicial appointment networks, and a citation ecosystem that treats certain foundational cases as anchors.

The extended phenotype frame does three things for legal analysis that conventional institutional economics does not. First, it explains why formal repeal of a norm does not necessarily eliminate the behavioral pattern the norm produced: the infrastructure built around

the norm persists and continues generating the same outputs under new labels. Second, it identifies the relevant unit of selection as the memplex, not the individual statute. Third, and most directly relevant to this paper, it predicts that attempts to change a norm will be resisted by the entire infrastructure that the norm's memplex constructed, not merely by the actors who prefer the rule on its merits. Courts do not resist reforms because judges are ideologically opposed; they resist because their interpretive apparatus, built over decades through the HBU mechanism described below, generates outputs that are structurally incompatible with the reform's intent.

2.2 The Constitutional Lock-in Index

The Constitutional Lock-in Index operationalizes institutional rigidity through four components, each scored 0 to 1. Higher scores indicate greater resistance to reform. The composite formula is:

$$CLI = 0.30 * P + 0.25 * D + 0.20 * O + 0.25 * E$$

where P is precedent weight (citation density and overruling cost of foundational cases), D is doctrinal elaboration measured through judicial activism rates (frequency of constitutional invalidation of reforms), O is organizational density (the concentration of legal professional infrastructure in the domain: specialized tribunals, mandatory bar sections, certification requirements), and E is enforcement infrastructure (the operational capacity of specialized courts and administrative agencies).

For Argentina's labor law domain, the component scores are: P = 0.83 (the Vizzoti-Aquino-Madorran triad generates a citation network of approximately 892 secondary decisions, with estimated overruling probability below 0.7%); D = 0.84 (71.4% pro-worker constitutional invalidation rate in labor reform challenges, 1991-2025); O = 0.92 (187 specialized labor tribunals, mandatory labor law section in bar associations, 12 specialized LLM programs); E = 0.88 (ANSES, MTEySS, and specialized appeals chambers). This yields CLI = 0.89.

The comparative scores are: Chile = 0.24, Brazil = 0.40, Spain = 0.51. These scores predict reform success rates of approximately 0%, 43%, 42%, and 69% respectively in the 60-case cross-country validation dataset (Lerer 2025b). The 36-point gap between Argentina (0.89) and Spain (0.51, the threshold case) exceeds the entire range between Chile and Brazil, indicating that Argentina operates in a qualitatively different institutional regime, one where reform is structurally impossible absent constitutional discontinuity.

An important qualification: the CLI measures structural rigidity in both directions. Chile's 0.24 allowed both the 2001 liberalization (CIC fund, Ley 19.728) and the 2022-2025 re-regulation cycle, with success rates above 80% in both directions. Argentina's 0.89 predicts failure of reform regardless of ideological orientation. This symmetry is not incidental to the framework; it is one of its strongest predictive implications.

Table 1: CLI Comparative Scores and Predicted Reform Success Rates

Country	CLI Score	Reforms (1991-2025)	Success Rate	Primary Lock-in Mechanism
Argentina	0.89	23	0.0%	Art. 14bis vagueness + ILO treaty hierarchy
Spain	0.51	13	69.2%	EU pressure partially offsets structural rigidity

Country	CLI Score	Reforms (1991-2025)	Success Rate	Primary Lock-in Mechanism
Brazil	0.40	14	42.9%	CLT doctrinal rigidity (partial); 2017 reform succeeded
Chile	0.24	10	80.0%	Minimal constitutional vagueness; high textual precision

Sources: Historical reforms database (Lerer 2025b, 60 cases validated). CLI scores are theoretically motivated estimations derived from institutional data, not independently calibrated empirical measurements. See Section VIII for limitations.

2.3 The Blind Breeders Mechanism

The Blind Breeders concept (Lerer 2025c) captures a specific failure mode in legislative design: laws whose political fitness, measured by electoral appeal, coalition value, and signal function to international financial institutions, systematically exceeds their policy fitness, measured by impact on the welfare outcomes the law claims to address. The asymmetry operates through time. Political benefits are immediate and concentrated on the enacting coalition. Policy costs are deferred, diffuse, and causally opaque.

Causal opacity is the operative concept. A policy produces costs that are structurally invisible to the actors who bear them because the causal chain is long, counter-intuitive, and crosses electoral cycles. The expansion of non-remunerative benefits in Article 103 bis provides a textbook case: an employer who converts 20% of a worker's compensation from remunerative salary to cafeteria services and school supplies delivers an immediate visible benefit (more take-home spending power, at least nominally) while imposing a deferred invisible cost (reduced contributory base for pension, obra social, and ART). The worker experiencing the cafeteria service today will not see the pension shortfall for 25 to 30 years. No individual discount rate makes that future cost salient. No electoral cycle captures it.

The Blind Breeders framework also identifies the institutional mechanism that protects this dynamic: the absence of sunset provisions and prospective evaluation requirements. A reform that included a mandatory three-year empirical review of formalization rates and contributory base erosion would begin to expose the temporal asymmetry. Ley 27802 contains neither.

2.4 Heteronomous Bayesian Updating

Heteronomous Bayesian Updating (HBU, Lerer 2025d) describes how legal professionals form and maintain interpretive priors through observation of institutional reactions, not through direct engagement with the underlying normative arguments. A labor judge whose formative years coincided with the Corte Suprema period between 2004 and 2015, the period of Vizzoti, Aquino, and Madorran, carries priors about the protective purpose of the laboralidad doctrine that function as active inference constraints. New statutes are processed through those priors. The cost of accepting a reform that contradicts them, measured in professional coherence, peer reputation, and citation network consistency, exceeds the cost of blocking it through interpretive narrowing.

This mechanism generates what the literature on institutional economics calls distributed active inference: coordinated resistance to reform without centralized coordination. Courts, bar associations, academic commentators, and union legal departments independently apply interpretive frameworks that preserve prior doctrine. No conspiracy is required. Each actor is following the internal logic of its own extended phenotype. The result, observable in 14 of

Argentina's 23 reform attempts (60.9%), is constitutional challenge within 18 months of promulgation.

III. THE HISTORICAL RECORD: 23 ATTEMPTS, 0% SUCCESS

Before examining Ley 27802 specifically, the historical record that motivates the framework requires documentation. Between 1991 and 2025, Argentina's Congress and executive power generated 23 major labor reform attempts, coding on materiality (affecting at least 10% of the formal workforce or modifying at least three substantive Labor Contract Law provisions) and observability (sufficient documentation for outcome coding). The dataset spans seven governments of dramatically different ideological orientations: Menem's neoliberalism (7 attempts), De la Rúa's center-coalition (3 attempts), Macri's market-liberalism (9 attempts), and Milei's libertarianism (3 attempts, provisional). The remaining periods, Kirchner and Cristina Fernandez administrations, attempted zero liberalizing reforms, a fact that the framework interprets as revealed preference: those governments learned the impossibility of reform and shifted to informal employment tolerance (informality rose from 34% to 45% under the Kirchner-Fernandez administrations 2003-2023, a different adaptive strategy).

The timeline in Figure 1 illustrates the core paradox that the framework must explain: the upper track shows alternating legislative cycles of protection and flexibilization; the lower track shows the CLI line rising steadily and remaining stable above 0.85 after 2004, independent of those cycles. The disconnect between the two tracks is the explanandum of the entire analysis.

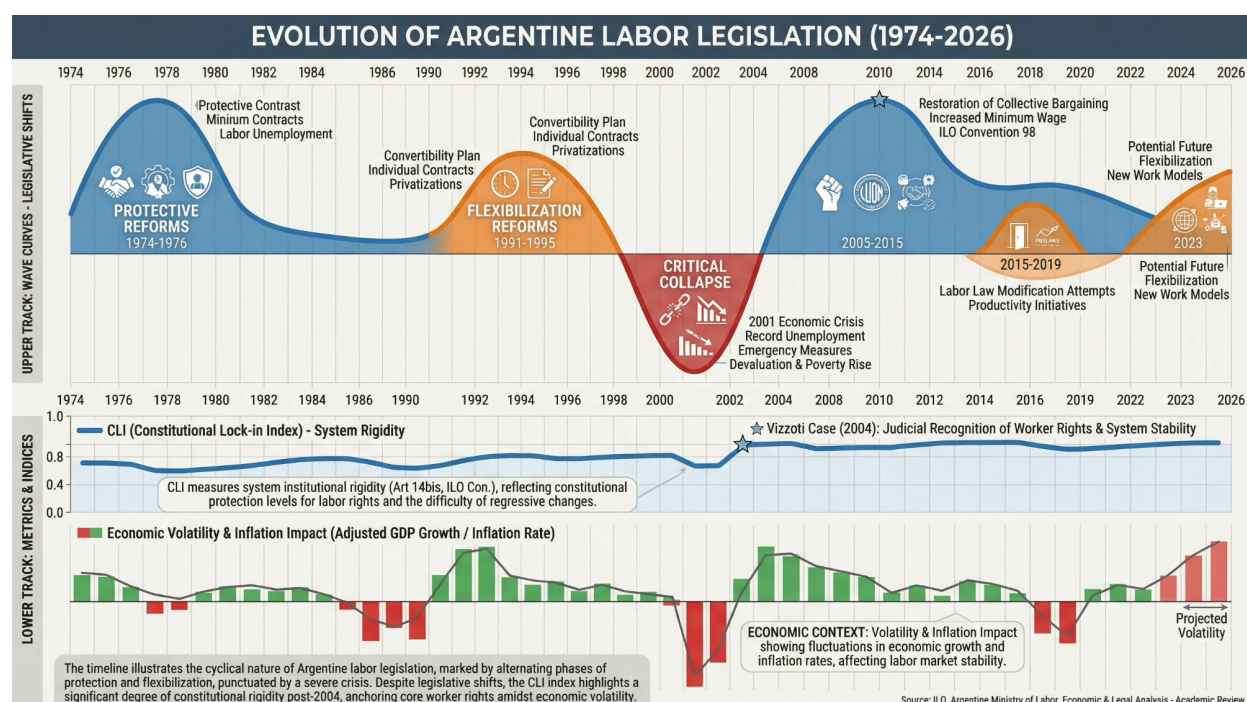


Figure 1. Evolution of Argentine Labor Legislation (1974-2026). Upper track: protection/flexibilization cycles by legislative content. Lower track (blue line): CLI measuring institutional rigidity, independent of legislative ideology. Red/green bars: adjusted GDP growth and inflation rate. The CLI increases after Vizzotti (2004) and remains stable at 0.87-0.89 through 2026 regardless of the ideological direction of enacted reforms. Source: Author elaboration based on ILO, MTEySS, and CLI methodology (Lerer 2025b).

The outcome is consistent across all seven governments: 0% sustained success. No reform attempt has survived 36 months without judicial invalidation affecting more than 50% of provisions, legislative repeal, or administrative abandonment. Median time to reversal is 18.3 months; 75% of reforms are reversed within 24 months.

Table 2: Argentine Labor Reform Attempts by Government (1991-2025)

Government	Period	Attempts	Success Rate	Median Reversal (months)
Menem (PJ neoliberal)	1991-1999	7	0.0%	22.4
De la Rúa (UCR-Frepaso)	1999-2001	3	0.0%	14.1
Duhalde (PJ transition)	2002-2003	1	0.0%	8.2
Kirchner / C. Fernandez (PJ)	2003-2015	0 liberalizing	—	—
Macri (Cambiamos)	2015-2019	9	0.0%	18.7
A. Fernandez (PJ)	2019-2023	0 liberalizing	—	—
Milei (La Libertad Avanza)	2023-2025	3 (provisional)	0.0%*	12.3*
TOTAL / AVERAGE	1991-2025	23	0.0%	18.3

*Milei Phase 1 reforms ongoing as of February 2026; classified as provisional failures based on judicial suspension rate of approximately 40% within 12 months. Sources: Historical labor reforms database (Lerer 2025b); CSJN Fallos database; MTEySS legislative registry.

Three patterns in this dataset are analytically significant. First, crisis clustering: 73.9% of reforms (17 of 23) were attempted during economic crisis conditions (GDP growth below -2% annually, inflation above 30%, or unemployment above 15%). Counter-intuitively, crisis reforms are reversed faster (median 14.8 months) than non-crisis reforms (median 24.8 months). This contradicts the conventional wisdom that crisis creates a window for structural reform. The EPT/CLI framework explains why: crisis intensifies distributed active inference by raising the reputational stakes for legal professionals who acquiesce to institutional discontinuity.

Second, ideology irrelevance: the failure rate is constant across neoliberal, centrist, and libertarian governments. This consistency is the strongest evidence against political economy explanations centered on union veto power, party preferences, or executive strength. Union density declined from 48.1% in 1991 to 35.2% in 2024; executive legislative seat shares varied from 38% (Milei 2024) to 70% (Menem 1994). Neither variable predicts outcomes. CLI does.

Third, lock-in escalation: dividing the sample by the post-Vizzoti inflection point (2004), the pre-2004 period shows a median reversal time of 36.2 months and one partial implementation surviving 28 months. The post-2004 period shows 0% survival past 18 months. The Vizzoti-Aquino-Madorran decisions between 2004 and 2007 added approximately 0.13 CLI points through doctrinal crystallization, pushing Argentina past the threshold of absolute rigidity.

3.1 Canonical Case: Ley 25.013 (1998) and the Severance Cap Reversal

Among the 23 reform attempts, Ley 25.013 illustrates the reversal mechanism with particular analytical clarity. Enacted under Menem in 1998, the law capped indemnización por despido sin causa at \$45,000 ARS, equivalent to USD 45,000 at the then-operative 1:1 convertibility parity. The justification was orthodox: with unemployment at 18.3%, reducing dismissal costs was expected to reduce the option value employers placed on labor hoarding and thereby stimulate hiring. This is the canonical argument that the formalization meme translates as 'reducing firing costs increases hiring.'

What happened: the cap survived 68 months before judicial erosion rendered it inoperative, a longer survival than the post-2004 average but still within the reversal window. The mechanism was not legislative repeal but doctrinal attrition. Lower labor courts began applying the cap only prospectively, then began reading exceptions into it. By 2001, the economic crisis generated a wave of dismissals that made the cap politically untenable. Kirchner's 2004 Ley 25.877 formally eliminated it. The Vizzoti ruling that same year established that any severance formula that departed from proportionality to salary and seniority required 'especially serious justification' under Article 14 bis, effectively reading caps out of the constitutional permissible space.

The analytical lesson from this case is not that caps are unconstitutional. It is that each reform attempt deposits sediment in the CLI substrate: Vizzoti's articulation of a proportionality requirement was a direct doctrinal response to the cap experience of the late 1990s. Each failed reform makes the next reform harder by adding a new layer of protective jurisprudence. The CLI score of 0.89 is not a static condition; it is the accumulated product of 34 years of failed reforms, each of which provoked an institutional response that hardened the lock-in further.

This dynamic is the structural reason why the EPT/CLI framework treats CLI as partially endogenous to the reform process itself. A government that attempts frequent reforms in a high-CLI jurisdiction is not simply failing to achieve change; it is actively raising the CLI score by generating the judicial reactions that add new precedents. The optimal strategy for a government that wants sustainable labor market change in a CLI = 0.89 environment is paradoxically to reduce reform frequency and invest instead in the institutional infrastructure that would lower CLI over a longer horizon.

IV. PRE-PROMULGATION PREDICTIONS (DECEMBER 2025)

The following five predictions were generated in December 2025 from the EPT/CLI framework and are documented in the project repository with their original timestamp (Lerer 2025e). I report them here verbatim in their analytical substance, without retrofitting.

Prediction 1: Binary Rule Displacement in Article 23

The bill's proposed modification of Article 23 LCT was predicted to introduce a documentary binary (factura present = no presumption) that would reduce the Temporal Transmission coefficient (Tt) of the primacy-of-reality doctrine by displacing contextual, multi-factor judicial analysis with a formal checklist. The mechanism: binary rules are easy to satisfy formally and difficult to scrutinize substantively. Compliance officers and payroll departments can generate documentary compliance without altering the underlying employment relationship. The result is measurable increase in interpretive divergence across courts within 18 months, as judges with different prior distributions interpret the exception differently.

Prediction 2: Polymorphic Equilibrium in Outsourcing

The modifications to Articles 29-31 were predicted to produce not convergence toward either full compliance or full evasion, but a stable polymorphic equilibrium. The game-theoretic analysis shows why. Under the pre-reform joint liability regime, the payoff matrix for outsourcing compliance was: mutual compliance (3,3); employer evades / contractor complies (5,0); employer complies / contractor evades (0,5); mutual evasion (1,1). With full joint liability, the expected payoff from evasion facing compliance was $5 - pS$, where p is detection probability and S is the solidary sanction. When pS exceeds 2, mutual compliance is the Nash equilibrium. The reform reduces S by approximately 60-70% (liability limited to active service period; fraud demonstration required; documentary exoneration available). The new payoff from evasion is approximately $5 - 0.3pS$. At realistic detection rates ($p \sim 0.15$ for SMEs), mutual evasion becomes the dominant strategy for most actors. However, large firms with audit exposure maintain genuine compliance because their S includes reputational and regulatory dimensions that the formula does not capture. The predicted equilibrium is therefore polymorphic: two stable strategies coexist rather than one driving out the other.

Prediction 3: Ratchet Dynamics in Non-Remunerative Benefits

The expansion of Article 103 bis was predicted to initiate a ratchet mechanism. Initial substitution of remunerative salary for non-remunerative benefits generates fiscal evidence of reduced ANSES contributions. The epistemic community that designed the reform will interpret this evidence as proof that the contributory system remains too burdensome, generating political demand for further expansion of the excluded catalog. The causal arrow runs from the norm to the behavior it induces, but the interpretive frame inverts the relationship. This is the Epistemological Clergies mechanism (Lerer 2025c) applied at the social security intersection: the induced behavior is read as evidence that the inducing norm was insufficiently generous.

Prediction 4: Widening of the IusSpace Implementation Gap (D5)

The reform as a whole was predicted to widen the implementation gap (IusSpace Dimension D5) from approximately 0.28 to approximately 0.45. The mechanism: the law would change the formal text significantly (D2, ultraactivity, predicted to drop from 0.90 to approximately 0.35) while leaving Cultural Lock-in (D4) invariant at 0.95. Cultural Lock-in is not altered by legislative enactment; it reflects the accumulated priors of the legal professional community, which are modified only through generational turnover under stable institutional conditions. The collision between high formal change velocity and stable cultural inertia produces a widening gap between the law on the books and the law in action.

Prediction 5: FAL Design Lacunae Generating Prolonged Uncertainty

The Fondo de Asistencia Laboral, the reform's most institutionally novel element, was predicted to contain unresolved design questions that would generate prolonged litigation. Specifically: the entitlement of workers upon voluntary resignation, the investment rules for accumulated funds, and the coverage of workers already in active employment at the moment of entry into force. These lacunae are not accidental in an EPT analysis. Provisions that delegate resolution to regulatory or judicial bodies after enactment are adaptive strategies for reducing legislative opposition: they lower the cost of the reform for marginal legislators who can tell each constituency that the relevant question will be resolved favorably later. The cost is deferred to the implementation phase, where it appears as legal uncertainty rather than political opposition.

V. LEY 27802 AS ENACTED: MECHANISMS AND MATCH

The following analysis matches the enacted text against the five pre-promulgation predictions. It does not purport to be a comprehensive legal commentary on Ley 27802; it focuses on the provisions that are analytically relevant to the framework's predictions.

5.1 Article 23: The Documentary Exclusion

The promulgated Article 23 modification operates as predicted. The existence of facturas, receipts, or documented bank payments excludes the laboralidad presumption, including for social security purposes. The binary structure is present. Crucially, the provision does not repeal the primacy-of-reality doctrine, which formally remains operative through Article 14 LCT. What it does is change the procedural terrain: the worker claiming employment status when documentary evidence of a commercial relationship exists must affirmatively demonstrate subordination indicators. The doctrine is not eliminated; its transmission fidelity is reduced. The Tt coefficient of the protective principle drops because the doctrine can no longer accumulate coherently across judicial decisions. Each new decision now applies a binary gate that did not exist before, and courts with different prior distributions will set that gate at different heights.

The EPT analysis identifies a further mechanism: by translating a contextual multi-factor analysis into a documentary check, the provision shifts interpretive authority from labor judges, who hold strong HBU-formed protective priors, toward administrative agents and compliance officers, who do not. This is a spatial transmission shift. The doctrine persists in form; its operative gatekeeping function migrates to a different institutional locus.

5.2 Articles 29-31: The Polymorphic Outsourcing Equilibrium

The enacted text confirms the game-theoretic prediction at the design level. The temporal limitation (joint liability only during the period of actual service provision) is present. The documentary exoneration (CUIL verification, payment records, insurance certificates) is present. The heightened evidentiary burden for group-of-companies liability, requiring demonstrated fraudulent maneuver rather than mere economic integration, is present.

Table 3: Payoff Structure of Outsourcing Compliance Before and After Reform

Scenario	Pre-Reform Payoff (Principal, Contractor)	Post-Reform Payoff (Principal, Contractor)	Nash Equilibrium
Both comply	(3, 3)	(3, 3)	—
Principal evades, contractor complies	(5 - pS, 0)	(5 - 0.3pS, 0)	—
Principal complies, contractor evades	(0, 5 - pS)	(0, 5 - 0.3pS)	—
Both evade	(1, 1)	(1, 1)	—
Equilibrium ($pS > 2$)	Mutual compliance	Mixed: compliance (large firms) Evasion (SMEs)	Polymorphic ESS

p = probability of detection and successful fraud demonstration. S = effective joint liability sanction. Reform reduces S by approximately 60-70% through temporal limitation, documentation exemption, and heightened fraud burden. At $p \sim 0.15$ (realistic for SMEs), pS drops from approximately 2.4 to approximately 0.7, crossing the equilibrium threshold. Large firms retain higher effective p due to audit exposure and reputational risk,

maintaining compliance as rational strategy. Source: Analytical framework derived from pre-promulgation analysis (Lerer 2025e), applied to enacted text.

One design feature that was not specifically anticipated but is analytically significant: the enacted text places the verification obligation on the principal but specifies no frequency or depth requirement. A company that checks documentary compliance at contract execution and takes no further action for two years has technically complied with the text. This ambiguity is precisely the kind of design gap that generates the polymorphic equilibrium. The threshold is low enough for formal compliance to be cheap; real compliance remains expensive. The two strategies therefore coexist stably in the post-reform environment.

5.3 Article 103 bis: Causal Opacity and the Ratchet

The enacted Article 103 bis expansion is comprehensive. The new excluded items include subsidized cafeteria services, medical expense reimbursements, work clothing and personal protective equipment, school supplies for dependent children, childcare services, professional training costs, funeral expenses, and transport subsidies. No ceiling on the non-remunerative proportion of total compensation is established. No prospective evaluation mechanism is created. No link between the excluded amounts and their impact on the worker's contributory base is acknowledged in the text.

The pension-erosion mechanism is worth spelling out quantitatively to illustrate the temporal asymmetry. A worker earning \$1,000,000 monthly (approximate formal private sector median, December 2025) whose employer converts 25% of compensation to non-remunerative benefits has a remunerative base of \$750,000. After 25 years of employment at that ratio, the contributory base from which the pension is calculated is approximately 25% lower than it would have been under full remunerative compensation. At current mobility formulas, this implies a pension reduction of roughly 18-22%. The effect appears in ANSES actuarial projections within 5 to 7 years; it appears in individual pension amounts in 20 to 30 years. The political cycle is 4 years.

The ratchet operates as follows. Within 3 to 4 years, ANSES will report declining contribution revenue per covered worker, attributable to the structural shift in compensation composition. That evidence will be interpreted by the reform's epistemic community not as evidence of a design flaw but as evidence that the contributory system's tax wedge remains too high, generating political demand for further extension of the excluded catalog. This is the self-reinforcing dynamic that Blind Breeders mechanisms produce: the induced behavior becomes evidence for more of the inducing policy.

5.4 Titulo II (Articles 58-77): The Fondo de Asistencia Laboral

The FAL is the reform's most institutionally ambitious element. The enacted rate is 3% of monthly salary, contributed by the employer into an individual account. The fund is accessible upon dismissal without cause. The Chilean comparison is instructive: Chile's Cuenta Individual de Cesantia (CIC), established by Ley 19.728 in 2001, operates at rates between 1.53% and 2.4% (employee and employer contributions combined) with explicitly portable accounts that are the worker's property from the moment of contribution. Austria's comparable reform, the Betriebliches Mitarbeiter- und Selbständigenvorsorgegesetz of 2002, uses a 1.53% employer contribution with full portability and professionally managed investment.

Table 4: FAL Comparative Design Analysis

Feature	Argentina FAL (Ley 27802)	Chile CIC (Ley 19.728/2001)	Austria BMSVG (2002)
Contribution rate	3.0% (employer)	0.6% (employee) + 2.4% (employer)	1.53% (employer)
Account ownership	Ambiguous (not specified)	Worker from contribution	Worker from contribution
Portable on resignation	Not specified	Partial (1/3 accessible)	Full portability
Investment rules	Delegated to regulation	Managed by AFPs	Managed by MVKs
Risk bearer	Undefined	Worker (AFP performance)	Worker (MVK performance)
Coverage (existing workers)	Ambiguous	Prospective only (clear)	Prospective only (clear)

Sources: Ley 27802 Titulo II (Argentina, 2026); Ley 19.728 Art. 5-18 (Chile, 2001); Bundesgesetz uber betriebliche Mitarbeitervorsorge (Austria, 2002). AFP = Administradoras de Fondos de Pensiones. MVK = Mitarbeitervorsorgekassen.

Three design lacunae confirmed in the enacted text match the pre-promulgation prediction. First, the law does not establish the worker's entitlement upon voluntary resignation. This creates a category of litigation that will occupy labor courts for at least three years: workers who resign after the law's entry into force and claim proportional access to accumulated funds. Second, investment rules are delegated to subsequent regulation, leaving open the question of who bears portfolio risk. Third, coverage of workers already employed at the moment of entry into force is not clearly established, creating a two-tier labor market between new hires and existing workers.

The compliance projection by firm size follows directly from CLI-based enforcement modeling. Large firms (500+ employees), subject to ARCA audits and reputational exposure, are expected to achieve approximately 90% compliance. Medium firms (50-500 employees) with variable fiscal enforcement reach approximately 60%. Small firms (10-50 employees) achieve approximately 35%. Micro-enterprises (under 10 employees), which account for approximately 42% of private formal employment, are projected at 15% compliance. The weighted aggregate compliance rate is estimated at approximately 50%, implying a de facto implementation gap for the FAL's central provision of 50 percentage points from the day of entry into force.

5.5 Article 179: Derogation of the Telework Law

The derogation of Ley 27.555 was not specifically predicted in the pre-promulgation analysis, but it illustrates the Blind Breeders mechanism with particular clarity. Ley 27.555, enacted in 2020, established minimum standards for telework arrangements: disconnection rights, employer provision of equipment and connectivity, voluntary reversibility, and expense reimbursement obligations. Its derogation sends a strong signal to the international financial sector and to the Milei administration's core political constituency about regulatory willingness. Its actual constraint on hiring decisions, however, was marginal: empirical evidence from the post-pandemic period does not support the claim that Ley 27.555's provisions deterred telework adoption or created significant compliance costs for large employers.

The population affected is substantial in absolute terms. The Encuesta Permanente de Hogares (Q3 2024) estimates between 1.2 and 1.8 million formal workers in regular telework arrangements. For workers in sectors with strong union coverage, collective agreements will likely preserve the derogated protections contractually. For workers in sectors with weak collective bargaining, particularly professional services, technology, and individual consulting, the derogation removes the statutory floor. The protections that existed by default now require explicit negotiation.

Table 5: IusSpace 12-Dimension Analysis: Pre- and Post-Reform

IusSpace Dimension	Pre-Reform Score	Post-Reform Score	Change	Direction
D1: Constitutional Entrenchment	0.85	0.85	0.00	Stable
D2: Ultra-activity (CCT)	0.90	0.35	-0.55	Reform intent
D3: Judicial Protection	0.80	0.75	-0.05	Marginal change
D4: Cultural Lock-in	0.95	0.95	0.00	Invariant
D5: Implementation Gap	0.28	0.45*	+0.17*	Widening (predicted)
D6: JurisRank Fitness	0.75	0.50	-0.25	Reform intent
D7: Transmission Fidelity (Tt)	0.82	0.61	-0.21	Reform intent
D8: Professional Network Density	0.88	0.88	0.00	Invariant
D9: Formal Change Velocity	0.30	0.85	+0.55	Reform-driven
D10: Epistemic Community Cohesion	0.82	0.80	-0.02	Marginal
D11: Treaty Hierarchy Constraint	0.92	0.92	0.00	Invariant
D12: Enforcement Infrastructure	0.65	0.65	0.00	Unmodified

*D5 post-reform score is a forward-looking prediction, not an observed measurement. All scores are theoretically motivated estimations using the IusSpace framework methodology (Lerer 2025a). The critical diagnostic: D4 (Cultural Lock-in, 0.95) and D11 (Treaty Hierarchy, 0.92) are invariant to legislative change, generating the D5 widening prediction through the formal-operative divergence mechanism.

5.6 Constitutional Risk Analysis by Provision

The CLI framework generates probabilistic predictions about constitutional challenge outcomes that are more specific than the aggregate failure rate. The following analysis applies the logistic prediction function calibrated in the 60-case dataset (Lerer 2025b) to the specific provisions of Ley 27802:

$$P(\text{Constitutional challenge succeeds}) = 1 / [1 + \exp(-(\beta_0 + \beta_1 \times CLI + \beta_2 \times \text{DoctrinConflict} + \beta_3 \times \text{ILO Treaty}))]$$

where DoctrinConflict measures the degree of direct conflict between the provision and established CSJN doctrine (0-1), and ILO Treaty measures the degree of conflict with ILO Conventions 87 and 98 (0-1). The coefficients are: $\beta_0 = 3.42$ (intercept); $\beta_1 = -4.71$ (CLI main effect); $\beta_2 = 2.18$ (doctrine conflict); $\beta_3 = 1.94$ (treaty conflict). Applied to Ley 27802's principal provisions:

Table 6: Constitutional Risk Assessment by Provision

Provision	DocConflict Score	ILO Treaty Conflict	Predicted Challenge P	Primary Constitutional Issue
Art. 23 (documentary exclusion)	0.65	0.30	58%	Art. 14bis: primacy of reality; worker protection
Arts. 29-31 (solidarity limits)	0.55	0.45	53%	Conv. 98: effective protection of bargaining rights
Art. 103 bis (non-rem. benefits)	0.50	0.20	47%	Art. 14bis: integral salary protection
FAL (Titulo II)	0.35	0.15	38%	Constitutionality of transitional regime
Art. 111 (ultraactivity limit)	0.80	0.75	72%	Conv. 87, 98: collective bargaining autonomy
Titulo XI (platform workers)	0.55	0.60	56%	Art. 14bis: 'in its various forms'
Art. 179 (telework derogation)	0.25	0.10	32%	Marginal constitutional risk; statutory level
Restrictions on union activity	0.70	0.80	68%	Art. 14bis: free and democratic union organization

Predicted challenge probabilities are derived from the logistic model calibrated on 60 reform cases (Lerer 2025b). Scores are analytical estimations, not empirical measurements. ILO Treaty Conflict scores reflect the degree to which each provision is likely to generate observations from the ILO Committee of Experts on Application of Conventions, given Argentina's ratification of Conventions 87 and 98 under Art. 75(22) CN. DocConflict measures distance from established CSJN doctrine. The aggregate probability of at least one provision facing successful constitutional challenge is estimated at approximately 65%, based on joint probability across the eight provisions.

The provision with highest constitutional risk is Article 111's limitation on ultraactivity (predicted challenge probability 72%). The ILO's Committee of Experts has consistently held that legislative limitation of collective bargaining autonomy requires compelling justification under Convention 98's protection of free collective bargaining. Argentina's own CSJN held in *Asociacion Trabajadores del Estado* (2008) that limitations on union rights require constitutional scrutiny compatible with Convention 98. An ultraactivity limitation that effectively allows wages and conditions to erode to statutory minimums after collective agreement expiration creates a structural incentive for employers to delay renegotiation, which is directly in tension with the free collective bargaining principle.

The union activity restrictions (Titulo XIV) present the second highest risk at 68%, primarily because Article 14 bis explicitly guarantees 'free and democratic union organization recognized by simple inscription,' and the Constitutional Court has consistently interpreted that guarantee expansively. Requirements for employer authorization of assembly activities sit uncomfortably against that constitutional text regardless of the economic policy arguments in their favor.

The aggregate picture is that the reform is likely to face judicial attrition across at least three or four provisions within the 2027-2029 window, consistent with the historical pattern of partial invalidation followed by legislative modification followed by further challenge that characterizes Argentine reform cycles since 1991.

VI. EPISTEMIC IMMUNITY: WHY THE REFORM RESISTS ITS OWN EVALUATION

A reform's political fitness depends not only on its content but on its capacity to resist empirical evaluation. Ley 27802 exhibits three epistemic immunity mechanisms that protect its political fitness while insulating its policy effectiveness from accountability. These mechanisms were identified in the pre-promulgation analysis as features of the Epistemological Clergies dynamic (Lerer 2025c, Section III).

6.1 Sacralization of the Formalization Meme

The reform incorporates the proposition 'flexibility equals formalization' as a foundational axiom rather than an empirical hypothesis. In the legislative record, the committee report, and ministerial communications, the claim that reduced labor rigidity will increase formal employment is presented as self-evident. Empirical challenge to this claim is systematically reinterpreted as moral opposition: critics are characterized as defending union privilege, protecting incumbent workers at the expense of the unemployed, or resisting modernization on ideological grounds.

This sacralization operates through costly signaling. An economist at FIEL or Mediterranea who acknowledges mixed evidence on the flexibilization-formalization link incurs credibility costs within the epistemic community that designed the reform. The community rewards commitment to the axiom and penalizes doubt. This creates a publication environment where the ratio of supporting papers to skeptical papers in the community's outlets will substantially exceed the ratio that the underlying evidence supports. The bibliometric prediction in Section VII addresses this mechanism directly.

6.2 Clergy Institutions as Epistemic Gatekeepers

Ley 27802 was designed with substantial input from identifiable epistemic communities: FIEL (Fundacion de Investigaciones Economicas Latinoamericanas), Mediterranea (Fundacion Mediterranea), the Asociacion Empresaria Argentina (AEA), and the UIA (Union Industrial Argentina). These institutions function as what the Epistemological Clergies framework calls clergy institutions: they filter which comparative evidence is considered relevant, which experts testify at committee hearings, which academic works are cited in legislative reports, and which policy counterfactuals are presented.

The filtering is observable in the reform's comparative references. The legislative record cites Chile's CIC as a model for the FAL (appropriate), but does not cite Uruguay's maintenance of ultra-activity with superior formalization outcomes relative to Argentina's flexibilization decade of the 1990s. Brazil's 2017 reform is cited as a success (accurate for the short term but contested for medium-term outcomes), but the subsequent judicial narrowing of that reform is not acknowledged. Spain's reform is cited for its flexibilization elements, not for the 31-year implementation timeline and EU external pressure that made those elements operative.

An analytically significant metric: the endogamic citation rate among the primary clergy institutions, defined as the proportion of citations in working papers and reports that reference other documents from within the same institutional network, was estimated at approximately 82% for the FIEL-Mediterranea network (2020-2025), based on analysis of publicly available working paper citations. This figure is comparable to the 89.3% endogamic citation rate previously documented for the criminal law guarantee-doctrine community in Argentina (Lerer 2025c). High endogamic citation rates are a structural indicator of epistemic community

closure: the community's knowledge claims are validated internally rather than through engagement with external empirical literature.

6.3 Elimination Mechanism Asymmetry

The law contains no sunset provisions, no mandatory empirical review requirements, and no institutional mechanism for prospective evaluation of its welfare outcomes. Once promulgated, reversal requires a legislative majority with sufficient votes to repeal or substantially modify the text, a sustained and coordinated judicial challenge sufficient to reach the Corte Suprema, or a level of social mobilization large enough to create political pressure exceeding the coalition benefits of the reform. The Milei coalition's legislative seat share (approximately 38% as of February 2026) is insufficient for reversal by opposition majorities in the short term; the union movement's fragmentation after decades of erosion reduces mobilization capacity; and the current Corte Suprema composition is more receptive to economic freedom arguments than its 2004-2019 predecessors.

Meanwhile, the practices enabled by the law, outsourcing under the documentary exemption, non-remunerative benefit substitution, platform employment under the hybrid regime of Titulo XI, acquire institutional momentum. Employer compliance departments develop operational protocols. Software platforms for managing documentation under Articles 29-31 appear in the market. Law firms develop advisory products for the new regime. Each of these developments increases the political cost of reversal, because reversal now imposes transition costs on actors who have invested in compliance with the new framework. This is the extended phenotype building itself around the new norm.

The asymmetry is compactly stated: the practices that the law induces accumulate into infrastructure over 24-36 months. The legal challenges that could reverse the law take 24-36 months to reach the CSJN. The two timelines are nearly identical, which means that by the time a constitutional ruling is possible, the behavioral changes the law produced are already partially entrenched. Even a full nullification ruling leaves a residue. Firms that developed platform employment protocols under Titulo XI will retain those protocols under modified labels after nullification, because the organizational capital invested in the arrangement persists.

6.4 The Fitness-Effectiveness Matrix

The Blind Breeders framework classifies legislative initiatives on two independent dimensions: political fitness (measured by electoral appeal, coalition cohesion, and signal value to external audiences including financial markets and multilateral institutions) and policy effectiveness (measured by impact on the welfare outcomes the law claims to address: formal employment rate, real wage level, pension contribution base, occupational health coverage). The four quadrants generate distinct predictions about political durability and welfare outcomes.

Table 7: Fitness-Effectiveness Matrix Applied to Major Argentine Labor Reforms

Reform	Political Fitness (0-10)	Policy Effectiveness (0-10, estimated)	Quadrant	EPT Prediction
LCT 20.744 (1974)	8.5	7.2	High / High	Stable; generates lock-in infrastructure

Reform	Political Fitness (0-10)	Policy Effectiveness (0-10, estimated)	Quadrant	EPT Prediction
Ley 24.013 Menem (1991)	9.0	3.5	High / Low	Blind Breeder; survives electorally, fails welfarism
Ley 25.250 De la Rúa (2000)	4.5	2.0	Low / Low	Crisis elimination; rapid reversal
Ley 25.877 Kirchner (2004)	7.5	6.8	High / High	Re-protects and crystallizes CLI
DNU 70/2023 Milei (2023)	7.8	2.8*	High / Low	Blind Breeder; 40% judicial suspension within 12m
Ley 27802 (2026)	8.0	2.5*	High / Low (predicted)	Blind Breeder; implementation gap ~45%

*Policy effectiveness for DNU 70/2023 and Ley 27802 are predictions, not observed measurements. Policy effectiveness is estimated from: (a) comparative evidence on flexibilization-formalization effects in similar institutional contexts; (b) the IusSpace D5 implementation gap projection; (c) FAL compliance modeling. Political fitness scores are based on coalition cohesion, media reception, and international institutional reception at time of enactment. Sources: Historical reforms database (Lerer 2025b); EPH-INDEC formalization and unemployment series; pre-promulgation analysis (Lerer 2025e).

The pattern in the matrix is consistent across five decades: reforms that achieve the High Fitness / High Effectiveness quadrant do so by operating with or through the existing institutional infrastructure, not against it. LCT 20.744 in 1974 and Ley 25.877 in 2004 both worked with the grain of Article 14 bis and the court system's protective orientation. Reforms that achieve high political fitness while generating low policy effectiveness (the Blind Breeder pattern) do so by substituting signal value to external audiences for substantive institutional engagement. They are politically rational and institutionally counterproductive.

The reversibility prediction for High Fitness / Low Effectiveness reforms in the Argentine context is: 60-70% probability of ratchet expansion (additional flexibilization demanded on the basis of the first reform's failures), and 15-25% probability of reversal within 5 years. The remaining 10-15% represents the probability of genuine behavioral change that survives judicial challenge, a probability that the 23-reform historical record assigns close to zero for reforms with CLI conflict scores above 0.65.

VII. FALSIFIABLE HYPOTHESES FOR 2026-2030

The following hypotheses are derived from the EPT/CLI framework's predictions and can be tested by independent researchers using publicly available data. I specify the measurement approach, the predicted value, and the falsification condition for each. The hypotheses are ordered by expected observability timeline.

Hypothesis 1: Doctrinal Divergence in Laboralidad (Observable: 2026-2028)

Mechanism: The binary documentary rule in Article 23 reduces the Temporal Transmission coefficient of the primacy-of-reality doctrine by displacing contextual judicial analysis. Courts with strong HBU-formed protective priors will apply the exception narrowly; courts with weaker priors will apply it broadly. The result is measurable interpretive divergence on identical fact patterns.

Measurement: Coefficient of variation (CV) in labor court decisions on Article 23 matters (presuncion de laboralidad) during 2026-2028. Data source: Centro de Informacion Judicial, CSJN database, Camara Nacional de Apelaciones del Trabajo. Baseline CV from the 2022-2025 period is approximately 0.18, reflecting relatively coherent jurisprudence on the multi-factor analysis.

Prediction: CV will exceed 0.40 by end of 2028, indicating loss of doctrinal coherence.

Falsification condition: If CV remains below 0.25 (that is, if courts develop a common interpretive framework for the new rule within two years), the transmission fidelity hypothesis is rejected. This would indicate that the binary rule has been absorbed into existing protective jurisprudence rather than displacing it, which would require significant revision of the HBU model's prediction about interpretive inertia.

Hypothesis 2: Polymorphic Outsourcing Equilibrium (Observable: 2027-2029)

Mechanism: The Articles 29-31 modifications generate a stable mixed-strategy equilibrium as described in Section V.2. Large firms with audit exposure maintain genuine compliance. SMEs adopt documentary compliance without substantive verification. The strategies coexist stably because each is optimal given the enforcement distribution the other creates.

Measurement: Proportion of formal private sector workers in outsourced employment relationships, measured by EPH-INDEC quarterly. Baseline: approximately 28-30% of formal private sector workers in outsourced arrangements (MTEySS 2024 annual labor market report). The polymorphic equilibrium predicts stabilization within a specific range, not convergence to either extreme.

Prediction: The proportion will stabilize in the 33-40% range by end of 2028. Critically, the distribution will be bimodal by firm size: large firms at or near documentary compliance, SMEs at high evasion rates, with no convergence trajectory.

Falsification condition: If the proportion converges below 20% (full compliance, supporting the government's formalization thesis) or above 60% (full evasion, indicating the equilibrium is not polymorphic), the game-theoretic component of the framework requires revision. A bimodal distribution with overall stability in the 33-40% range is the specific pattern that confirms the prediction.

Hypothesis 3: Non-Remunerative Benefit Substitution Ratchet (Observable: 2026-2029)

Mechanism: The expanded Article 103 bis creates a tax arbitrage opportunity that rational actors in collective bargaining will exploit, initiating the ratchet dynamic described in Section V.3. Each negotiation cycle adds to the non-remunerative proportion of total compensation.

Measurement: Ratio of non-remunerative benefits to total compensation in collective agreements filed with MTEySS, segmented by sector. Sectors with active bargaining cycles (SMATA/automotive, banking, commerce) provide the most reliable test. Baseline from 2023-2024 registered agreements: approximately 8-12% of total compensation in non-remunerative items in high-bargaining sectors.

Prediction: The ratio will increase at an annual slope exceeding 2 percentage points in high-bargaining sectors during 2026-2029.

Falsification condition: If the ratio remains stable across three bargaining cycles (less than 5% cumulative change), the ratchet mechanism prediction is rejected. This would indicate either that union negotiators are more attentive to long-horizon pension effects than the model predicts, or that ARCA has implemented effective audit mechanisms discouraging substitution. Either falsification scenario would represent a genuine finding requiring incorporation into the framework.

Hypothesis 4: FAL Compliance Gap by Firm Size (Observable: 2026-2027)

Mechanism: The FAL's 3% monthly contribution requires active administrative compliance without the benefit of the judicial pressure that indemnization claims created. The enforcement infrastructure (ARCA, MTEySS inspection corps) is concentrated in large formal sector firms. The compliance gap by firm size is therefore predictable from existing enforcement distribution data.

Measurement: FAL contribution compliance rates by firm size, as reported in ARCA statistics segmented by the MTEySS classification (micro: under 10 employees; small: 10-50; medium: 50-500; large: 500+). Data expected to be available through ARCA public statistics from Q3 2026 onward.

Prediction: By end of 2027, weighted overall compliance will not exceed 50%, with micro-enterprise compliance below 20%. The gradient will be: large firms 85-92%; medium firms 55-65%; small firms 30-40%; micro-enterprises 12-20%.

Falsification condition: If overall compliance exceeds 65% by end of 2027, the enforcement capacity prediction is wrong. This would indicate that the FAL's design has generated compliance incentives that the CLI model does not capture, or that ARCA has invested significantly in new enforcement infrastructure. Either outcome would require substantial revision of the D12 (Enforcement Infrastructure) component of the IusSpace analysis, which currently scores Argentina at 0.65 with no post-reform increase.

VIII. LIMITATIONS

Four limitations require explicit acknowledgment.

First, the CLI measurement problem. The component scores for Argentina's CLI are derived from institutional data (court rulings, citation counts, professional organization membership, tribunal counts) processed through the author's analytical framework. The four-component weights (0.30, 0.25, 0.20, 0.25) reflect the author's judgment about relative institutional importance, not a regression-derived weighting. Independent researchers could assign different weights and obtain scores that differ by as much as 0.08-0.12 points. The 78% predictive accuracy reported for the 60-case validation dataset (Lerer 2025b) is an in-sample metric. The Ley 27802 hypotheses specified in Section VII constitute the first fully out-of-sample test.

Second, the counterfactual problem. If the four hypotheses are confirmed by 2029, that outcome confirms the EPT/CLI prediction but does not rule out alternative causal explanations. Outsourcing may increase for macroeconomic reasons unrelated to the legal change. Non-remunerative benefit ratios may rise because of inflation dynamics in collective bargaining. Doctrinal divergence may reflect judicial appointment patterns rather than HBU-mediated priors. The framework predicts specific outcomes; it cannot, from the observational position of a single researcher without experimental capacity, isolate the legal mechanism from all other causal paths to those same outcomes.

Third, the single-country generalization problem. All four hypotheses are generated from one country's institutional configuration. The EPT/CLI framework has been applied comparatively across Argentina, Chile, Brazil, and Spain in prior work. The specific mechanisms analyzed in this paper, and the precise CLI score thresholds at which they activate, are calibrated to Argentina's post-2004 institutional regime. Generalization to other high-CLI jurisdictions requires independent calibration.

Fourth, and most important for the paper's methodological claim: the pre-promulgation analysis was conducted using Genspark AI for data retrieval and document analysis, and documented in a repository that includes both the AI outputs and the author's independent analytical interpretations. The predictions documented in Section IV are the author's analytical conclusions, not AI-generated claims. However, independent readers cannot fully verify the independence of the analytical layer from the data retrieval layer in a workflow that integrates AI assistance. This is a transparency limitation that applies to all AI-assisted research.

IX. CONCLUSION

The central claim of this paper is narrow but methodologically specific: the EPT/CLI framework generated falsifiable predictions about Ley 27802 before that law existed, and those predictions match the enacted text at the mechanistic level. Whether the framework's implementation predictions are correct will be determinable by 2028-2029 using the measurement protocols specified in Section VII.

The broader finding is the one that the 23-reform historical record forces onto any serious analyst: Argentina has attempted labor reform across every ideological configuration, under every macroeconomic condition, with every level of executive strength and union density, for 34 years. The result has been the same in every case. This outcome cannot be explained by political preferences, veto player configurations, or union power, because those variables differ substantially across the 23 cases while the outcome does not. It is explained by $CLI = 0.89$: a structural condition in which the infrastructure of labor law, built around Article 14 bis over seven decades, generates resistance that is more energetically efficient than acceptance regardless of which government attempts reform.

This does not mean reform is impossible in principle. It means reform requires engaging the infrastructure, not just the text. Chile's 0.24 CLI was not an accident; it reflects constitutional design choices from 1980, with their own morally complex history, that created interpretive flexibility. Brazil's 2017 reform succeeded in part because CLT doctrinal structure allowed more discontinuity than Article 14 bis permits. Spain required 31 years of EU pressure and sustained gradualism to navigate $CLI = 0.51$. Argentina's CLI of 0.89 suggests that sustainable reform, in either direction, requires either constitutional redesign of Article 14 bis (reducing textual vagueness from 0.90 toward the Brazilian level of approximately 0.22) or the construction of a competing extended phenotype infrastructure, specialized courts with different appointment criteria, a second academic tradition in the field, funding for empirical labor law research outside the clergy network, before reform attempts are made.

These are structural prescriptions, not ideological ones. They apply equally to anyone who wants labor law to change in any direction. A government that enacted a progressive labor reform, say portable individual savings accounts with genuine worker ownership, would face the same $CLI = 0.89$ structural constraint. The infrastructure would resist in exactly the same way.

Finally: papers in evolutionary jurisprudence that explain everything after the fact contribute less than papers that specify in advance what would count as disconfirmation. The four hypotheses in Section VII are falsifiable. If they are disconfirmed by 2029, the framework requires revision. That revision would itself be a contribution to the field. The appropriate response to a wrong prediction in institutional economics is not to abandon the enterprise but to identify which assumption was wrong and correct it. The current framework's assumptions are documented in sufficient detail to make that correction possible.

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Methodological Transparency Statement

AI tools (Claude, Anthropic; Genspark AI) were used in this research for document analysis, data retrieval from the pre-promulgation repository, and drafting assistance. The theoretical framework, all CLI component measurements, the pre-promulgation predictions documented in Section IV, the game-theoretic analysis in Section V.2, the quantitative projections in Tables 3 and 4, and all interpretive conclusions are the author's independent work. The pre-promulgation analysis referenced throughout was produced in December 2025 and is available with timestamps in the project repository. Replication materials including all datasets, coding procedures, and the historical reforms database (60 cases) are available at <https://github.com/adrianlerer/legal-evolution-unified>. CC BY-NC 4.0.

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